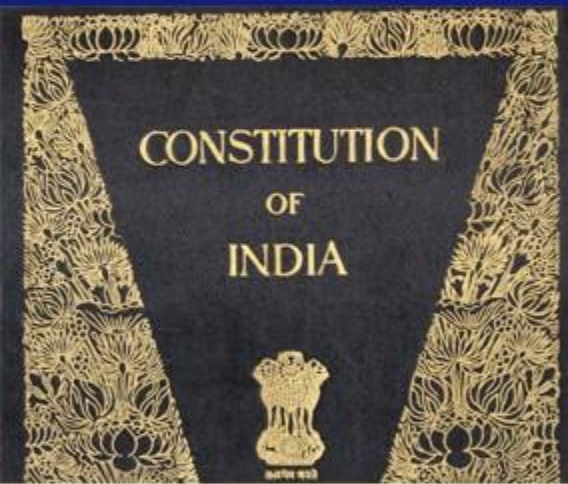


INDIAN POLITY



MODULE - 41

FUNDAMENTAL RIGHTS

- ARTICLE 29, 30
- MINORITY RESERVATION ISSUE

CULTURAL AND EDUCATIONAL RIGHTS

PROTECTION OF INTEREST OF MINORITIES

ARTICLE 29

1 Article 29 provides that any Section of the citizens residing in any part of India having a distinct language, script or culture of its own, shall have the right to conserve the same.



2 Further, no citizen shall be denied admission into any educational institution maintained by the State or receiving aid out of State funds on grounds only of religion, race, caste or language.

3 The first provision protects the right of a group while the second provision guarantees the right of citizen as an individual irrespective of the community to which he belongs.

CULTURAL AND EDUCATIONAL RIGHTS

PROTECTION OF INTEREST OF MINORITIES

ARTICLE 29

4 Article 29 grants protection to both **religious minorities as well as linguistic minorities**. However, the Supreme Court held that the scope of this Article is not necessary restricted to minorities only, as it is commonly assumed to be.

5 This is because of the words "**Section of Citizens**" in the Article that include minorities as well as majority.

6 An important consequence of the 'right to conserve' one's script is that citizens have the right to agitate for the protection of their language.

7 Hence, the political speeches or promises made for the conservation of the language of a section of the citizens **does not amount to corrupt practice under the Representation of the People Act, 1951**.

CULTURAL AND EDUCATIONAL RIGHTS

RIGHT OF MINORITIES TO ESTABLISH AND ADMINISTER EDUCATIONAL INSTITUTIONS

ARTICLE 30

1 Article 30 grants the following Rights to minorities whether religious or linguistic:

- a) All minorities shall have the right to establish and administer educational institutions of their choice.
- b) The compensation amount fixed by the State for the compulsory acquisition of any property of a minority educational institution shall not restrict or abrogate the right guaranteed to them. This provision was added by the 44th Amendment Act of 1978 to protect the right of minorities in this regard. The Act deleted the right to property as a Fundamental Right.
- c) In granting aid, the State shall not discriminate against any educational institution managed by a minority.

CULTURAL AND EDUCATIONAL RIGHTS

RIGHT OF MINORITIES TO ESTABLISH AND ADMINISTER EDUCATIONAL INSTITUTIONS

ARTICLE 30



2 Thus, the protection under Article 30 is confined only to minorities (religious or linguistic) and does not extend to “any section of citizens” (as under Article 29). However, the term “minority” has not been defined anywhere in the Constitution.

3 The right under Article 30 also includes the right of a minority to impart education to its children in its own language.

CULTURAL AND EDUCATIONAL RIGHTS

RIGHT OF MINORITIES TO ESTABLISH AND ADMINISTER EDUCATIONAL INSTITUTIONS

ARTICLE 30

- 4** Minority educational institutions are of three types:
- a) Institutions that seek recognition as well as aid from the State.
 - b) Institutions that seek only recognition from the State and not aid
 - c) Institutions that neither seek recognition nor aid from the State.
- 5** The institutions of first and second type are subject to the regulatory power of the State with regard to syllabus prescription, academic standards, discipline, sanitation, employment of teaching staff and so on.
- 6** The institutions of third type are free to administer their affairs but subject to operation of general laws like contract law, labor law, industrial law, tax law, economic regulations and so on.

CULTURAL AND EDUCATIONAL RIGHTS

RIGHT OF MINORITIES TO ESTABLISH AND ADMINISTER EDUCATIONAL INSTITUTIONS

ARTICLE 30

7 In a judgment delivered in the **secretary of Malankara Syrian Catholic College case(2007)**, the Supreme Court has summarized the general principles relating to establishment and administration of minority educational institutions in the following way:

General principles relating to establishment and administration of minority educational institutions

- 1** The right of minorities to establish and administer educational institutions of their choice comprises the following rights:
- To choose its **governing body** in whom the founders of the institution have faith and confidence to conduct and manage the affairs of the institution.
 - To **appoint teaching staff** (teachers/lecturers and head-masters/principals) as also non-teaching staff and to take action if there is dereliction of duty on the part of any of its employees.
 - To **admit eligible students of their choice** and to set up a reasonable fee structure and
 - To **use its properties and assets** for the benefit of the institution.

CULTURAL AND EDUCATIONAL RIGHTS

RIGHT OF MINORITIES TO ESTABLISH AND ADMINISTER EDUCATIONAL INSTITUTIONS

ARTICLE 30

General principles relating to establishment and administration of minority educational institutions

2 The right conferred on minorities under Article 30 is only to ensure equality with the majority and **not intended to place the minorities in a more advantageous position vis-à-vis the majority.**

3 There is **no reverse discrimination in favour of minorities.** The general laws of the land relating to national interest, national security, social welfare, public order, morality, health, sanitation, taxation etc., applicable to all, will equally apply to minority institutions also.

4 The right to establish and administer educational institutions is **not absolute.** **Nor does it include the right to maladminister.**



URDU EDUCATION BOARD

Government Recognized Minority Education Board

Declared by National Commission for Minority Educational Institutions, Govt. of India.

Regd. with Ministry of HRD (CR) & Planning Commission, Govt. of India

Recognized by Govt. of NCT of Delhi, IAO, USA & IADL, UK.

CULTURAL AND EDUCATIONAL RIGHTS

RIGHT OF MINORITIES TO ESTABLISH AND ADMINISTER EDUCATIONAL INSTITUTIONS

ARTICLE 30

General principles relating to establishment and administration of minority educational institutions

5 There can be **regulatory measures** for ensuring educational character and standards and maintaining academic excellence.

6 There can be **checks on administration** as are necessary to ensure that the administration is efficient and sound, so as to serve the academic needs of the institution.

7 Regulations made by the State concerning generally the welfare of students and teachers, regulations laying down eligibility criteria and qualifications for appointment, as also conditions of service of employees (both teaching and non-teaching), regulations to prevent exploitation or oppression of employees and regulations prescribing syllabus and curriculum of study fall under this category.

8 Such regulations do not in any manner interfere with the right under Article 30 (1).

CULTURAL AND EDUCATIONAL RIGHTS

RIGHT OF MINORITIES TO ESTABLISH AND ADMINISTER EDUCATIONAL INSTITUTIONS

ARTICLE 30

General principles relating to establishment and administration of minority educational institutions

9 Subject to the eligibility conditions/qualifications prescribed by the State being met, the **unaided minority educational institutions** will have the freedom to appoint **teachers/lecturers** by adopting any rational procedure of selection.

10 Extension of aid by the state, does not alter the nature and character of the **minority educational institutions**. The conditions can be imposed by the State to ensure proper utilization of the aid, without however diluting or abridging the right under Article 30 (1).

CONTEMPORARY ISSUE

RESERVATIONS IN MINORITY INSTITUTIONS



WHY WAS IT IN NEWS?

- *Uttar Pradesh CM Yogi Adityanath talked about Dalit reservations in Jamia, AMU.*
- *As per the governmental policy, there must be 15 per cent reservations for SCs and 7.5 per cent for STs in government universities.*



CONTEMPORARY ISSUE

RESERVATIONS IN MINORITY INSTITUTIONS

WHAT DOES CONSTITUTION SAY?

- 1** The Constitution permits religious and linguistic minorities to establish and administer the educational institutions of their choice.
- 2** Indian Constitution uses word minority at many places but doesn't give specific definition but gives general definition. Minorities are defined at the state level.
- 3** The Constitution of India uses the word 'minority' in some articles- Article 30, 350 A, 350 B etc- but does not define the word 'minority'.
- 4** However, several Supreme Court judgments have sought to define minority at the state level in term of protection under Article 30. The SC in *TMA Pai Foundation & ors vs State of Karnataka & ors* consider the question of the unit for the purpose of determining the definition of 'minority' within the meaning of Article 30(1).
- 5** It held that 'a minority either linguistic or religious is determinable only by reference to demography of the State and not by taking into consideration the population of the country as a whole'.

CONTEMPORARY ISSUE

RESERVATIONS IN MINORITY INSTITUTIONS

WHAT DOES CONSTITUTION SAY?



6 Thus, a Hindi medium institution in Tamil Nadu established by the Hindus of UP will be a linguistic minority institution. Another example is that Hindus are a religious minority in Kashmir, Punjab and some north-east states.

7 Article 15(5) of the Constitution says that minority institutions under Article 30 shall be exempt from constitutional reservation.

8 This amendment was inserted in 2005 by the **93rd constitutional amendment**.

CONTEMPORARY ISSUE

RESERVATIONS IN MINORITY INSTITUTIONS

WHAT ABOUT THE SUPREME COURT INFERENCES?



- 1 The constitutional validity of the amendment was upheld by the five-judge bench of the Supreme Court in Ashok Thakur case of 2008.
- 2 The exemption from the ambit of reservations is constitutionally valid as they are a class by themselves and cater to the special needs of minorities.
- 3 The Supreme Court also held minority rights as the basic structure of the Constitution and therefore these rights cannot be taken away even by constitutional amendments.

INDIAN POLITY

CONTEMPORARY ISSUE

RESERVATIONS IN MINORITY INSTITUTIONS

WHAT ABOUT THE SUPREME COURT INFERENCES?

4 The Supreme Court held that “educational institution” in Article 30 includes a “university” (Aziz Basha, 1968). Therefore, there can be minority universities.

5 We have a number of minority universities established by Muslims, Christians, Jains etc.

6 The apex court in Kerala Education Bill (1957) explicitly stated and in TMA Pai Foundation in 2003 by its 11-judge bench reiterated, that a minority institution is primarily for the minority that has established it and there shall be “only sprinkling of outsiders” to ensure the dissemination of a minority culture to those outsiders.

The Court also held that “governmental aid” cannot destroy or annihilate the minority character of such institutions.

INDIAN POLITY

CONTEMPORARY ISSUE

RESERVATIONS IN MINORITY INSTITUTIONS

SOME BENEFITS OF BEING A MINORITY INSTITUTION



1 They would have freedom to reserve seats for Muslims, for example in Jamia and AMU 50% seats are reserved for Muslims.

2 Secondly they would get the freedom to not implement the Reservation policy i.e. giving 50% reservation to the SC/ST and OBCs. Also their land could only be acquired by the government after paying compensation.

CONTEMPORARY ISSUE

RESERVATIONS IN MINORITY INSTITUTIONS

MORE ON THE MINORITY INSTITUTIONS

- 1** Minority institutions are those that were established by the minorities primarily for the education of the concerned minorities.
- 2** They invest their resources, their land and money in establishing such institutions.
- 3** Till 2003, as per St. Stephen's case of 1991, minority institutions were allowed to reserve only 50 per cent seats in favour of minority that has established such an institution.
- 4** TMA Pai case of 2003 lifted the upper limit of 50 per cent.
- 5** Now minority institutions may have more than 50 per cent reservations in favour of minorities depending on the course and needs of the minority community.
- 6** The 93rd amendment thus was to comply with the apex court's order in TMA Pai case of 2003.

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